Driveways Fact Sheet

This Fact sheet provides information for any person or organisation wanting to undertake driveway works within the public road reserve. It explains the standards Parkes Shire Council requires for driveway construction or modification and outlines the responsibilities of property owners.

Do I Need to Apply to Construct My Driveway?

Yes. Constructing a driveway involves a Roads Act 1993 s138 approval to allow your occupation of Councils road reserve, and construction of driveway crossing Council's asset. Failure to do this may result in an issue of non-compliance and, in some cases, the work may need to be removed and reconstructed at your cost.

Why Do I Need a Permit?

The NSW Roads Act 1993 requires Council consent be obtained for works within the road reserve, to ensure it complies with Australian Standards and Council policies. Council must ensure new driveways and alterations are safe for both vehicles and pedestrians, do not conflict with existing infrastructure such as signs, poles and street trees, adequately manage stormwater and do not create any hazard on the Council footway or verge area.

How Do I Obtain a Permit?

You can apply for your application to Occupy Footpath & Public Street via the NSW Planning Portal. You will be required to pay an application fee during the lodgement process. You will need to include a site plan of the property with the proposed driveway marked up and the driveway profile from the road to the house, including showing the natural surface levels.

Council will undertake the approval process and you can then obtain quotes from a contractor to undertake the work.

How Long Does It Take to Obtain Council Approval?

A straightforward application will usually be processed within 14 to 21 working days. A permit will be emailed, together with your plan, for you to provide to your contractor to start creating the formwork.

My Development Approval Already Has Driveway Conditions; Do I Still Need Approval for Driveway Works?

Yes, you must still obtain a permit from Council before constructing your driveway.

What If the Access Road Is Not Owned by Council?

If the access road to your property is a Crown Road, you must first obtain and submit written approval from the appropriate State Government authority. Council will not approve access to a property via a public reserve

What Are My Responsibilities?

As the property owner, you are responsible for the cost and standard of construction and maintenance of your driveway, including any modification to the kerb and gutter. It is also your responsibility to ensure that any work done on your driveway crossover complies with Council standards, and any contractor

you use is aware of the requirements. Council recommends the contractor be adequately insured and appropriately licensed to undertake the proposed works. Driveway approval does not override any conditions set out in an associated Development Application.

It is your responsibility to consult 'Before You Dig' via the website www.byda.com.au to check for any utilities and services, such as water, gas or electrical, that may be affected by your excavations.

Council will not accept liability for injury or property damage caused by work carried out privately on your driveway crossover, or for accidents caused by badly constructed or unauthorised driveways. Damage caused by Council or other public authorities undertaking works will be reinstated by the authority that has caused the damage

How Many Driveways Can I Have?

Residential developments are generally allowed one driveway for vehicle access. An additional crossing may be allowed if the property:

1) Has access to two or more street frontages

2) Is a commercial/industrial development with separate entry and exit points or two or more entry levels or multiple ramps

3) Is a duplex without a shared driveway.

4) Driveway allowances for medium-density residential and larger developments are assessed on merit

Existing Concrete Paving

Where your proposed driveway crosses an existing concrete footpath, the footpath must be saw-cut at the extremities of the driveway, removed, then reconstructed to the specified

access driveway standards, with the grade and cross fall of the pre-existing footpath maintained. Where no footway exists, the nature strip on each side of the driveway must be battered smoothly at a grade no steeper than one in four to maintain acceptable stands for pedestrians and allow future provision of concrete foot paving.

REDUNDANT Crossings

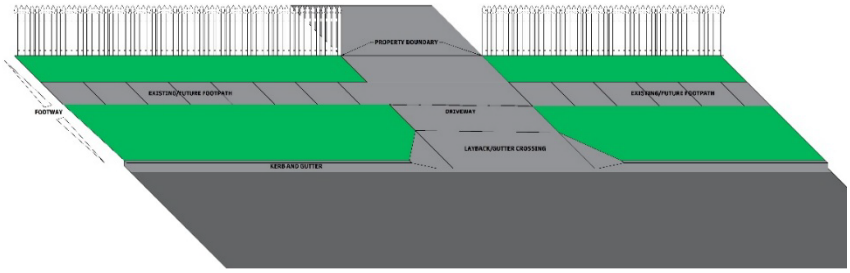
If you wish to move your existing driveway, concrete laybacks must be replaced with kerb, pipe crossings and in-situ drains must be removed, and the ground reinstate

DRIVEWAYS

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WHAT IS A DRIVEWAY CROSSOVER?

A driveway is a vehicular crossing that provides safe and reasonable access to a property. The crossover is the part of the driveway that crosses the footway from the road pavement to the property boundary, as illustrated in the typical driveway layout (see right).



CONSTRUCTION REQUIREMENTS

Material	Full slab from road pavement to property boundary. Non-slip surface material
Widths	*Residential:* Maximum four metres at kerb (excluding 0.5m wings) and five metres at boundary. *Commercial:* Usually, six metres at the kerb but can be increased at Council's discretion
Slab Thickness	*Residential:* Minimum 150mm (no mesh required, however recommended). *Commercial:* Minimum 150mm with 2 layers SL82 reinforcing mesh.
Location	Driveway should be at a 90-degree angle to the kerb and not extend past the prolongation of the property boundary. Parking space behind the building line 3 metres wide and 5 metres long. Driveways at intersections must be at least six metres beyond where the curved kerb section straightens out.
Drainage	Minimum 500mm clear of existing stormwater inlet pits. Removal or reduction of the pit lintel or grating is not allowed; however relocation of the pit may be permitted, at owner or applicant's expense and subject to approval by Council.
Vegetation	Minimum two metres from the outer trunk of an existing street tree. Seek Council advice if construction or excavation is to take place within the street tree canopy drip line.
Sight Lines	Minimum sight distances to traffic and pedestrians in accordance with AS/NZS 2890.1 - 2004, Parking Facilities, Part 1: Off-street car parking. Sight distances should not be affected by existing structures such as street trees, earth mounds, bus shelters, power poles and other physical features. Removal of such structures may be permitted, subject to Council approval.

Gradients	Maximum longitudinal gradients: 20 per cent within property and 2.5 per cent across footpath. Changes in gradients exceeding 12.5 per cent will require the introduction of transitions (requiring compliance with AS/NZS 2890.1-2004). Generally, +4% gradient from back of kerb to boundary is required. Where an access driveway is proposed within an older developed area and where a large difference in level between the existing roadway and the property boundary occurs, a site-specific design may be required which may include lowering of existing footpath. These are non-standard treatments and will require design by a suitably qualified professional.
Shared Driveway	Where an access driveway is proposed within an older developed area and where a large difference in level between the existing roadway and the property boundary occurs, a site-specific design may be required which may include lowering of existing footpath. These are non-standard treatments and will require design by a qualified professional
DESIGN	
Roll Top Kerb	Driveways in streets with roll top kerb and gutter should be designed to match the top of the kerb as shown on the standard drawing - **Standard Drawing 2040- Driveways Urban Residential**
Vertical Faced Kerb	Driveways in streets with this type of kerb will require removal of the kerb and replacement with a 'layback section' as shown on the **Standard Drawing 2040- Driveways Urban Residential**
No Kerb and Gutter	Driveways in streets with no kerb and gutter should provide either in-situ gutter crossing or stormwater pipe and headwalls within any existing table drains to match. Pipe crossing must be minimum 1.2 metres to the edge of the traffic travel lane and should have a guidepost erected on the approach side of the pipe and headwalls.